

**THE PUNJAB PROHIBITION OF KITE FLYING ORDINANCE,
2001
(LIX of 2001)**

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TEXT

**¹THE PUNJAB PROHIBITION OF ²[KITE FLYING] ORDINANCE, 2001
(LIX of 2001)**

[26th December 2001]

**An
Ordinance
for the prohibition of ³[kite flying].**

Whereas it is expedient to provide for the prevention of ⁴[kite flying] in order to save human life, public and private properties and matters connected therewith and incidental thereto;

And whereas the Provincial Assembly of the Punjab is dissolved and the Governor is satisfied that circumstances exist which render it necessary to take immediate action;

And whereas under Article 4 of the Provisional Constitution (Amendment) Order No. 9 of 1999, as amended by the Chief Executive Order No. 11 of 2000, the Governor of a Province may issue and promulgate an Ordinance;

Now, therefore, in exercise of the aforesaid powers and all other powers enabling him in that behalf, the Governor of the Punjab is pleased to make and promulgate the following Ordinance:-

1. Short title, extent and commencement.— (1) This Ordinance may be called the Punjab Prohibition of ⁵[* * *] Kite Flying ⁶[* * *] Ordinance, 2001.

(2) It extends to the whole of the Punjab.

(3) It shall come into force at once.

⁷[2. Definitions.— In this Ordinance—

⁸[(a) “child” means a person who has not attained the age of eighteen years;

¹Promulgated by the Governor of the Punjab on 26 December 2001; and, published in the Punjab Gazette (Extraordinary), dated 26 December 2001, pages 2337 to 2339. Under Article 5A of the Provisional Constitution Order 1999 (I of 1999), as amended, read with Article 270AA of the Constitution of the Islamic Republic of Pakistan, 1973, it shall not be subject to any limitation as to duration prescribed in the Constitution.

²Substituted for the words “dangerous kite flying activities” by the Punjab Prohibition of Kite Flying (Amendment) Act 2009 (XIV of 2009), w.e.f.17.11.2009.,s.2. This Act was originally promulgated as Ordinance XX of 2007; was given permanent life by PCO I of 2007; however, consequent upon the judgment of the Supreme Court of Pakistan dated 31 July 2009, this Ordinance was laid in the Assembly; and was enacted as Act XIV of 2009; and published in the Punjab Gazette (Extraordinary), dated 17.11.2009, pages 1627-1629.

³Substituted *ibid*, for the words “dangerous of kite flying activities”., s.2.

⁴*Ibid*, s.2.

⁵Substituted *ibid*, for the words “Dangerous”, s.3.

⁶Substituted *ibid*, for the words “Activities”, s.3.

⁷Substituted by the Punjab Prohibition of Kite Flying (Amendment) Act 2009 (XIV of 2009); and published in the Punjab Gazette (Extraordinary), dated 17.11.2009, pages 1627-1629, s.4.

⁸Substituted by the Punjab Prohibition of Kite Flying (Amendment) Act 2025 (IV of 2025); and published in the Punjab Gazette (Extraordinary), dated 29 January 2025, pp. 2683-2684, s.2(a).

- (aa) “guardian” means the guardian as defined in the Guardians and Wards Act, 1890 (VIII of 1890);]
 - (b) “Government” means the Government of the Punjab;
 - (c) “kite flying” means the flying of a kite at any place with metallic wire, nylon cord (tandi) or any other thread coated with sharp *maanjs*ha or any other material which endangers or is likely to endanger human life or property;
 - (d) “place” means a street, road, thoroughfare, park, garden, playground, graveyard, hotel, restaurant, motel, mess, club, house, building, tent, vessel, any roof and open space;
- ⁹[* * * * *] and
- (f) “sharp *maanjs*ha” means a mixture of chemicals and grinded glass or any other injurious and dangerous material, coated on thread for the purpose of kite flying.]

3. Cognizable and non-bailable offence.— Notwithstanding anything contained in any other law for the time being in force, an offence under this Ordinance shall be cognizable and non-bailable and ¹⁰[tried under] the Code of Criminal Procedure, 1898 (Act V of 1898).

¹¹**4. Offence and punishment.**— (1) No person shall—

- (a) commit or abet an act of kite flying;
- (b) manufacture, ¹²[transport by any means,] sell or offer for sale a kite; and
- (c) manufacture, ¹³[transport by any means,] store, sell or offer for sale metallic wire, nylon cord (tandi), any other thread coated with sharp *maanjs*ha or any other injurious material for the purpose of kite flying.

¹⁴[¹⁵[* * * * *]]

¹⁶[(3) Whoever contravenes the provision of clause (a) of sub-section (1), shall be punished with imprisonment for a term which may extend to five years, but not less than three years, or with fine of two million rupees, or with both, and in

⁹Omitted by the Punjab Prohibition of Kite Flying (Amendment) Act 2025 (IV of 2025); and published in the Punjab Gazette (Extraordinary), dated 29 January 2025, pp. 2683-2684, s.2(b).

¹⁰Substituted for the words “would be tried summarily under Chapter XXII of” by the Punjab Prohibition of Kite Flying (Amendment) Act 2025 (IV of 2025); and published in the Punjab Gazette (Extraordinary), dated 29 January 2025, pp. 2683-2684, s.3.

¹¹Substituted by the Punjab Prohibition of Kite Flying (Amendment) Act 2009 (XIV of 2009); and published in the Punjab Gazette (Extraordinary), dated 17.11.2009, pages 1627-1629, s. 5.

¹²Inserted by the Punjab Prohibition of Kite Flying (Amendment) Act 2025 (IV of 2025); and published in the Punjab Gazette (Extraordinary), dated 29 January 2025, pp. 2683-2684, s.4(a).

¹³Inserted by the Punjab Prohibition of Kite Flying (Amendment) by the Act *ibid*.

¹⁴Substituted for the words “Nazim” by the Punjab Laws (Amendment) Ordinance 2018 (IV of 2018), published in the Punjab Gazette (Extraordinary), dated: 28 May 2018, pp. 8259-8267, s. 2 read with the Schedule, item 26.

¹⁵Omitted by the Punjab Prohibition of Kite Flying (Amendment) Act 2025 (IV of 2025); and published in the Punjab Gazette (Extraordinary), dated 29 January 2025, pp. 2683-2684, s.4(b).

¹⁶Substituted by the Punjab Prohibition of Kite Flying (Amendment) Act 2025 (IV of 2025); and published in the Punjab Gazette (Extraordinary), dated 29 January 2025, pp. 2683-2684, s.4(c).

default of payment of fine, offender shall suffer imprisonment for a term of one year.

(4) Whoever contravenes the provision of clauses (b) or (c) of sub-section (1), shall be punished with imprisonment for a term which may extend to seven years, but not less than five years, or with fine of five million rupees, or with both, and in default of payment of fine, offender shall suffer imprisonment for a term of two years.

(5) Notwithstanding anything contained in this Ordinance, if a child contravenes the provisions of sub-section (1), shall be tried in accordance with the provisions of the Juvenile Justice System Act, 2018 (XXII of 2018) and shall be punished with fine of fifty thousand rupees for the first offence, and on repetition of same offence, shall be punished with fine of one hundred thousand rupees.

(6) If the child, who is punished under sub-section (5), is unable to pay the fine, it shall be recoverable from his parents or guardian, and in case of default of payment of fine by the parents or guardian, as the case may be, it shall be recoverable as arrears of land revenue.]]

¹⁷[* * * * *]

5. Power of entry, search, seizure and arrest without warrant.— A Police Officer ¹⁸[.] not below the rank of Sub Inspector upon information or from his personal knowledge and after such inquiry as he thinks necessary ¹⁹[.] ²⁰[* * *] may—

- (a) arrest without warrant any person committing ²¹[or suspected to have committed] an offence under section 4 ²²[²³***];
- (b) enter and search such place at any time with such assistance as he may require and using such force as may be necessary; and
- (c) seize and take possession of any article reasonably suspected to have been used or intended to be used for the purpose of committing an offence ²⁴[under this Ordinance]:

²⁵[* * * * *]

¹⁷Omitted "Section 4-A, 4-B, 4-C" by the Punjab Prohibition of Kite Flying (Amendment) Act 2025 (IV of 2025); and published in the Punjab Gazette (Extraordinary), dated 29 January 2025, pp. 2683-2684, s.5.

¹⁸Inserted by the Punjab Prohibition of Kite Flying (Amendment) Act, 2009 (XIV of 2009); and published in the Punjab Gazette (Extraordinary), dated 17.11.2009, pages 1627-1629, s.9.

¹⁹Inserted by the Punjab Prohibition of Kite Flying (Amendment) Act, 2009 (XIV of 2009); and published in the Punjab Gazette (Extraordinary), dated 17.11.2009, pages 1627-1629 s.9.

²⁰Omitted the words "and has reason to believe that any place is being used for kite flying" by the Punjab Prohibition of Kite Flying (Amendment) Act, 2009 (XIV of 2009); and published in the Punjab Gazette (Extraordinary), dated 17.11.2009, pages 1627-1629, s.9.

²¹Inserted *ibid.*, s.9.

²²*Ibid.*, s.9.

²³Omitted the words "or section 4-A" by the Punjab Prohibition of Kite Flying (Amendment) Act 2025 (IV of 2025); and published in the Punjab Gazette (Extraordinary), dated 29 January 2025, pp. 2683-2684, s.6.

²⁴Substituted for the words "of kite flying" by the Punjab Prohibition of Kite Flying (Amendment) Act 2009 (XIV of 2009); and published in the Punjab Gazette (Extraordinary), dated 17.11.2009, pages 1627-1629, s.9.

²⁵Proviso omitted *ibid.*

6. Mode of making searches and arrests.— The provisions of the Code of Criminal Procedure, 1898, except those of section 103, shall *mutatis mutandis*, apply to all searches and arrests in so far as they are not inconsistent with the provisions of section 5.

7. Appeal.— An appeal against the order of a Magistrate shall lie to the Court of Sessions whose decision thereon shall be final.

8. Ordinance to override other laws etc.— This Ordinance shall have effect notwithstanding anything contained in any other law for the time being in force.

²⁶[²⁷* * * * *]

²⁶Inserted by the Punjab Prohibition of Kite Flying (Amendment) Act 2009 (XIV of 2009); and published in the Punjab Gazette (Extraordinary), dated 17.11.2009, pages 1627-1629, s.10.

ibid., s.10.

²⁷Omitted "Section 8-A" by the Punjab Prohibition of Kite Flying (Amendment) Act 2025 (IV of 2025); and published in the Punjab Gazette (Extraordinary), dated 29 January 2025, pp. 2683-2684, s.5.